

controlled the property are insufficient when the grant deed shows RHR transferred their ownership in the property in 2016. Plaintiffs have not alleged any facts showing that despite transferring title, RHR continued to possess or control the property. The reasonable inference of the grant deeds and the allegations in the complaint is that RHR is being sued because they owned the premises in 2016. In that case, Plaintiffs need to allege facts showing that Restatement section 353 applies and they have not done so here.

In a footnote, Defendants note that it is unknown when the alleged dangerous condition was created, but that they have not owned it within the last 10 years, which is the statutory limitations period for latent defects. (Code of Civil Procedure section 337.715.) Defendants have not fully discussed their statute of limitations theory, however, the Court notes that Defendants RHR claims it last owned the property in September 2016 and Plaintiff filed this complaint in May 2025, which is less than 10-years since RHR owned the property.

Defendant RHR's demurrer is sustained with leave to amend.

As to Richmond Community Foundation (RCF) and Richmond Community Foundation dba RCF Connects, defendants argue that it is not a public entity, but a nonprofit public benefit corporation. The Court grants defendants' requests for judicial notice of the corporate filings (RJN ex. B and C) because they show how RCF was formed.

Plaintiffs have alleged the RCF (and RCF Connects) are public entities, but those allegations conflict with the judicially noticeable facts. Thus, Plaintiffs have not stated a claim against RCF for dangerous condition of public property. The demurrer to cause of action one is sustained with leave to amend on the failure to state a cause of action and also on uncertainty.

Defendants argue that RCF has not owned the property, but that fact is not found in the judicially noticeable documents. While Defendants have provided three grant deeds, there is no showing of the ownership of the premises since 2016.

As to the demurrer on uncertainty, the Court agrees that the complaint and judicially noticeable facts make it uncertain as to whether RCF is a public entity. As to the remaining uncertainty arguments, the Court finds that the complaint is not so uncertain that Defendants cannot respond to it.

15. 9:00 AM CASE NUMBER: C25-02582
CASE NAME: JOANNA GALVEZ VS. MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: GALVEZ, JOANNA
TENTATIVE RULING:

Plaintiff's counsel, Robert Starr, moves to be relieved as counsel, asserting that he has lost contact with his client. He attempted contact via the phone number and email she had given him, and a certified letter to her last known address was returned.

The motion is **granted**. If plaintiff intends to pursue this lawsuit, she must attend the next case management conference (in person, by Zoom, or through new counsel) to state her intentions concerning representation or self-representation. That CMC will also be an order to show cause why the case should not be dismissed for failure to prosecute.

Plaintiff is invited to attend the hearing on this motion if she is aware of it. If she intends to do so, she must notify both the Court and Mr. Starr by telephone call, by no later than 4:00 p.m. today (Tuesday).

Given that Starr's grounds for withdrawal are not confidential and are stated in his motion papers, there is no need for a personal appearance by him for an *in camera* hearing, unless Ms. Galvez gives notice that she will be appearing.

16. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES

TENTATIVE RULING:

Petitioner, *in pro per*, filed this action to raise CEQA challenges to two approvals by the City of San Ramon to two amended housing development projects. The merits of those CEQA challenges are not before the Court.

The two real parties in interest in the case, joined by the City, demur to the petition on the ground that petitioner failed to exhaust administrative remedies, because he pursued no administrative appeals to the City Council from the adverse decisions of the Planning Commission. Although the first amended petition reflects that petitioner was aware of the exhaustion requirement, his asserted reasons for failing to do so are legally insufficient.

The demurrer includes an exhaustive, correct, and convincing explanation of the law governing the statutory requirement of exhaustion of administrative remedies, including any available administrative appeals, in CEQA cases. Petitioner has filed no opposition to this demurrer. He thereby effectively acknowledges and admits the correctness of the substance of the demurrer.

The demurrer of the real parties in interest and the City are therefore **sustained without leave to amend**.

18. 9:00 AM CASE NUMBER: MSC20-00575
CASE NAME: STARS HOLDING CO. VS. MEHRABI
***HEARING ON MOTION IN RE: SET ASIDE ORDER GRANTING APPLICATION FOR RIGHT TO ATTACHMENT ORDER AND QUASH THE WRIT OF ATTACHMENT BASED THEREON**
FILED BY: MEHRABI, KARIM

TENTATIVE RULING:

Before the Court is a motion by defendants to set aside the order granting application for right to